SimpleSales Terms of Service

Terms governing use of the SimpleSales application

Application SimpleSales

Service provider Nerva Technologies, Kenya

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1. Purpose, scope and acceptance

1.1 Purpose

SimpleSales is a point-of-sale and small-business management application intended to help merchants record sales, manage products and stock, track expenses and business activity, review performance, and use supported integrations. It is a business tool, not a replacement for professional accounting, legal, tax, investment, lending or regulatory advice.

1.2 Scope

These Terms govern the SimpleSales mobile application, related websites, APIs, dashboards, support channels, integrations, exports, backups and other services made available by Nerva Technologies (collectively, the Service).

1.3 Acceptance

By creating an account, accepting these Terms, installing or using the Service after being presented with them, or otherwise accessing the Service, you agree to them. If you do not agree, do not use the Service.

1.4 Business authority

If you use SimpleSales for a business, you represent that you have authority to bind that business. If you invite staff or other users, you are responsible for ensuring they are authorized and understand their permissions.

1.5 Updates

NERVA may update these Terms when the Service, law, security requirements, commercial model or operations change. Where legally required or reasonably appropriate, notice will be provided. Material mandatory rights are not waived by this clause.

2. Definitions

Account A user account used to authenticate and access one or more permitted Shops.

Shop A business location or workspace under an Account.

Profile A configuration preset: Drinks, Duka, Fashion or Open.

Business Data Products, sales, purchases, expenses, customers, suppliers, inventory, reports and related records.

Customer Data Personal data about customers entered by or for a merchant.

Transaction A recorded sale, return, expense, payment, repayment, purchase or adjustment.

Third-Party Service A service not controlled by NERVA, including payment providers, cloud providers, app stores and device services.

Contribution Data Business information voluntarily permitted for commercial intelligence, research, benchmarking or data products.

Applicable Law Laws, regulations and binding legal requirements applicable to the relevant activity.

3. Service model and profiles

3.1 One application

SimpleSales is one application and one shared platform. Profiles are configuration presets, not separate apps or separate databases.

3.2 Drinks

Intended for bars, taverns, wines and spirits outlets, beverage retail and similar businesses; may support pours, tanks/taps, tabs, crates, waste and shifts.

3.3 Duka

Intended for general retail, groceries, cereals, loose goods, hardware, cosmetics, stationery and similar businesses; may support counted/measured goods, packs, break-bulk, customer credit, suppliers and reorder workflows.

3.4 Fashion

Intended for boutiques and clothes, shoes and accessories; may support size/colour variants, seasons, lay-by, exchanges, markdowns and staff attribution.

3.5 Open

Intended for flexible money-first businesses including resellers, produce sellers, salons, mechanics, tailors, photographers, makers and freelancers; stock, jobs, materials and cost pools may be optional.

3.6 Profile selection

A profile is selected during Shop setup. Returning users are not asked to select a profile on every login. Creating another Shop may require selecting that Shop's profile. A profile does not determine tax or licensing obligations.

4. Accounts, credentials and access

4.1 Accurate information

Provide reasonably accurate account information and keep it current.

4.2 Credentials

Protect passwords, PINs, recovery codes, devices and session credentials. Do not share personal credentials. Report suspected compromise promptly.

4.3 Roles

Owners and administrators are responsible for assigning appropriate staff permissions. You remain responsible for actions performed through credentials you control, except to the extent caused by NERVA's own unlawful conduct.

4.4 Unauthorized access

Do not bypass authentication, role controls, rate limits, audit controls or other security measures, or access another Shop without authorization.

4.5 Closure

Account closure does not erase records NERVA or the merchant is legally required to retain.

5. Transactions, records and accuracy

5.1 Merchant responsibility

SimpleSales records information based on user inputs, configurations and connected services. You are responsible for accurate sales, prices, stock, expenses, debts, returns, payments and tax records.

5.2 Verification

A record displayed in SimpleSales is not automatically independently verified. Manual cash entries, manual references and adjustments require appropriate reconciliation.

5.3 Reconciliation

Regularly reconcile cash, mobile-money records, bank statements, physical stock, supplier statements and other external records.

5.4 Corrections

Use supported void, refund, return and adjustment workflows. Do not manipulate records to conceal activity.

5.5 Offline operation

Where offline/local-first functionality exists, data may remain on a device until synchronization. Device loss, corruption, unauthorized access or failed synchronization can affect availability. Enable backups where available and verify them.

5.6 Exports

Exports are copies. Protect exported files and share them only with authorized recipients.

5.7 Merchant review and record integrity

You are responsible for reviewing data entered by staff or imported from connected services, maintaining appropriate role permissions, reconciling records, keeping lawful supporting documentation, and investigating material discrepancies. You must not use the Service to falsify transactions, create misleading records, conceal sales or expenses, circumvent tax controls, or knowingly submit inaccurate information to a bank, payment provider, regulator, customer or other person.

6. Payments and third-party services

6.1 Payment providers

SimpleSales may integrate with mobile-money, card or other payment providers. Those providers may process payment credentials and transaction data under their own terms.

6.2 NERVA is not your bank

Unless separately agreed, NERVA is not a bank, deposit-taker, lender, insurer, payment institution or custodian of funds merely because the Service displays or initiates payment information.

6.3 Confirmation

Where an authoritative provider callback exists, SimpleSales may use it. Otherwise a status may be pending, manual or user-entered and must not be represented as guaranteed settlement.

6.4 Provider failures

NERVA is not responsible for third-party outages, reversals, settlement delays, limits, fees, fraud controls or account decisions.

6.5 Secrets

Never expose payment-provider secret keys or credentials in public repositories, screenshots, receipts or customer-visible fields.

7. Taxes, accounting and regulatory obligations

7.1 No tax advice

Tax fields, calculations, reports or e-invoicing integrations are software features and do not constitute tax advice or guarantee compliance.

7.2 Taxpayer-specific rules

Tax obligations depend on the taxpayer, legal entity, registration status, transaction type, period and applicable law. A Shop profile does not decide whether VAT, turnover tax, income tax, PAYE, withholding tax,

excise or another obligation applies.

7.3 KRA/eTIMS

Merchants remain responsible for applicable registration, invoicing, recordkeeping, filing and payment obligations. SimpleSales is not a substitute for current KRA requirements or professional tax advice.

7.4 Changing rules

Tax rules can change. Review material tax configurations and obtain professional advice when appropriate.

7.5 Official records

Where a government, regulator or payment provider supplies an authoritative record or filing status, that external record controls over a conflicting application display, subject to law.

7.6 Merchant tax responsibility — filing, accuracy and follow-up

You are solely responsible, as between you and NERVA, for determining which taxes and regulatory obligations apply to you or your business; registering with the relevant authority where required; ensuring that all information entered, imported, calculated, generated, exported or submitted through SimpleSales is accurate, complete, current and supported by appropriate records; reviewing tax rates, classifications, exemptions, invoice details and calculations; keeping books, invoices and supporting documents; reconciling SimpleSales records with source documents and official records; preparing, approving and filing every required return or declaration by the applicable deadline; paying taxes, interest, penalties and other amounts due; and monitoring, responding to and following up on filings, payments, assessments, notices, objections, audits, refunds and other matters with KRA or any other competent authority. You must independently confirm that a submission was accepted and that payment was received and credited by the relevant authority. A draft, calculation, receipt, status indicator, integration or successful transmission shown in SimpleSales is not, by itself, proof that a return is legally correct, has been accepted, or that tax has been paid.

7.7 Tax decisions and professional review

You must independently assess whether SimpleSales supports the tax treatment applicable to your business, seek advice from a qualified tax professional where appropriate, and promptly correct errors through lawful procedures. Do not rely solely on an automated report, estimated calculation, profile selection, invoice template or third-party integration to determine tax liability. Do not delete, falsify, conceal or manipulate records to evade tax or mislead an authority.

8. Fees, subscriptions and refunds

8.1 Pricing

SimpleSales may be free, subscription-based, feature-based or otherwise commercial. Price, billing interval, taxes, limits and included features will be presented before paid commitment where required.

8.2 Changes

NERVA may change pricing or packaging with notice where required.

8.3 Non-payment

Paid features may be restricted for overdue amounts after reasonable notice where required.

8.4 Refunds

Refund rights depend on purchase channel, applicable law and the terms presented at purchase. Mandatory consumer rights are not excluded.

9. Acceptable use

9.1 Lawful use

Use the Service only for lawful activities for which you have authority.

9.2 Prohibited conduct

Fraud, theft, money laundering, identity theft or other unlawful activity.

Unauthorized access to accounts, APIs, databases, devices or administrative systems.

Malware, ransomware, spyware, destructive code or intentional interference.

Bypassing authentication, security controls, rate limits or audit mechanisms.

Scraping or automated access that violates limits or materially harms the Service.

Uploading material that unlawfully infringes privacy, intellectual-property or other rights.

Processing personal data without lawful authority.

Misrepresenting NERVA as a bank, lender, tax authority, payment provider or government agency.

9.3 Enforcement

NERVA may investigate and restrict or suspend access where reasonably necessary for security, legal compliance, protection of users or the Service. Where practicable, notice and an opportunity to resolve the issue will be provided.

10. Commercial intelligence and aggregated data

10.1 Separate program

NERVA may operate an optional commercial-intelligence program for aggregate market insights. Participation is separate from the core POS service.

10.2 Raw-data boundary

Commercial customers do not receive raw transaction dumps, individual customer records or identifiable shop-level records merely because they purchase a data product.

10.3 Minimization and aggregation

NERVA may minimize fields, transform identifiers, aggregate records and apply suppression controls. Thresholds are safeguards, not mathematical proof of anonymity.

10.4 Contribution Ledger

A restricted sanitized Contribution Ledger may record contribution lineage, normalization and permitted uses. Access is limited to authorized data-steward personnel.

10.5 Separate consent

Optional commercial intelligence is separate from operational backup, security and necessary service processing. Where consent is the lawful basis, it is requested separately and can be withdrawn subject to lawful retention.

10.6 Licensed outputs

Products may include aggregate reports, benchmarks, supplier/brand intelligence, dashboards, APIs and bespoke research. Customer access is governed by its commercial agreement.

10.7 No forecast guarantee

Market analytics can contain sampling limits, delays and estimates and are not guaranteed forecasts.

10.8 Commercial use and participation

SimpleSales may use information necessary to provide, secure, maintain, support and improve the Service. NERVA may also develop commercial products such as aggregated market reports, industry benchmarks, dashboards, research and analytics. These outputs may be made available to commercial customers under licence or contract. Where commercial activity involves personal data, NERVA will identify the purpose and applicable lawful basis, provide the notices required by law and obtain separate express consent or other legally sufficient authorization where required. Optional commercial-intelligence participation is separate from the core POS service and, where participation is optional, declining it will not by itself disable core POS functionality.

10.9 Limits on commercial outputs

NERVA will apply data minimization and aggregation safeguards appropriate to the intended use and will seek to exclude direct identifiers from commercial outputs where appropriate. Aggregation, hashing, tokenization or removal of names does not necessarily make information anonymous. NERVA will not represent data as anonymous where it can reasonably be linked back to an identifiable person or business. Commercial customers must be subject to appropriate contractual restrictions on re-identification, unauthorized onward disclosure and use outside the agreed purpose. Individual-level customer records, raw customer contact lists, credentials and identifiable transaction-level records are not included in commercial products merely because a customer purchases a product.

10.10 Accurate privacy representations

Nothing in these Terms authorizes processing prohibited by applicable law or overrides a data subject's statutory rights. The Privacy Policy and any consent interface must accurately describe actual data flows, purposes, recipients, retention and choices. NERVA will not rely on acceptance of these Terms as consent to a separate purpose where the law requires separate consent.

11. Intellectual property

11.1 NERVA rights

Subject to rights you already own and third-party licenses, NERVA and its licensors own the Service, software, interface, branding, documentation and platform materials. You receive a limited right to use the Service.

11.2 Your data

You retain rights in Business Data and User Content you own. You grant NERVA only the rights reasonably necessary to host, process, secure, transmit, back up and operate on that data for the Service.

11.3 Aggregated insights

To the extent permitted by law and consistent with disclosures, NERVA may create aggregate or irreversibly anonymized statistical insights that do not identify you or an individual.

11.4 Feedback

NERVA may use product suggestions and feedback without compensation, excluding unrelated confidential information.

12. Security and confidentiality

12.1 Security measures

NERVA will maintain reasonable technical and organizational measures appropriate to the Service and data handled. No connected system can be guaranteed completely secure.

12.2 Merchant security

Use strong credentials and device locks.

Limit staff permissions.

Keep supported devices updated.

Use official, unmodified software.

Protect backups, exports and printed receipts.

Report suspected compromise promptly.

12.3 Incidents

NERVA will respond to security incidents according to applicable law, contracts and internal incident-response procedures, including required notifications where applicable.

12.4 Incident cooperation

You must promptly notify NERVA through its published security contact if you suspect unauthorized access, compromised credentials, data loss or a security incident affecting the Service. You must preserve relevant evidence and reasonably cooperate with investigations and legally required mitigation. NERVA remains responsible for its own statutory duties and will make notifications required by law.

13. Availability and service changes

13.1 Availability

NERVA aims for reliability but does not promise uninterrupted or error-free service. Availability may be affected by maintenance, networks, cloud providers, app stores, operating systems, devices, payment providers and events outside reasonable control.

13.2 Maintenance

Planned or emergency maintenance may temporarily affect functionality.

13.3 Features

NERVA may add, modify, deprecate or discontinue features, especially where third-party dependencies change.

13.4 Backups

Backup availability depends on the mechanism actually enabled. Merchants should retain independent records where law or prudent business practice requires.

14. Disclaimers

14.1 General

To the maximum extent permitted by law, the Service is provided on an “as available” basis, subject to non-excludable legal warranties. NERVA does not guarantee every business requirement, every calculation, every device or every integration.

14.2 Financial/tax

Profit, cash-flow, tax, forecast and analytics outputs depend on supplied data and configuration and are not professional advice.

14.3 Outcomes

NERVA does not guarantee increased sales, lower losses, loan approval, credit access, tax savings or any other business outcome.

14.4 Third parties

Third-party services are governed by their own terms and are outside NERVA’s control.

15. Liability and indemnity

15.1 Limitation

To the maximum extent permitted by law, NERVA is not liable for indirect, incidental, special, consequential or punitive losses, or loss of profits, revenue, goodwill, anticipated savings, opportunity or data, except where law prohibits such exclusion.

15.2 Cap

Subject to mandatory law, NERVA’s aggregate liability for a claim will not exceed the greater of amounts paid for the affected Service during the preceding twelve months or KSh 10,000, unless a separate written agreement states otherwise.

15.3 Non-excludable liability

Nothing limits liability that cannot lawfully be limited, including fraud or other non-excludable matters.

15.4 Indemnity

To the extent permitted by law, you agree to defend/hold harmless NERVA from third-party claims arising from unlawful use, breach of these Terms, infringing User Content or processing personal data without authority. This does not shift liability caused by NERVA’s own unlawful conduct.

15.5 Liability language and mandatory law

Any limitation, exclusion, indemnity or allocation of responsibility in these Terms applies only to the extent permitted by applicable law. It does not exclude liability that cannot lawfully be excluded, including liability for fraud or NERVA’s own unlawful conduct, and does not remove statutory rights or remedies. The liability cap must be reviewed by Kenyan counsel for enforceability, fairness, consumer status and the nature of the Service; it should not be assumed enforceable merely because it appears in these Terms.

16. Suspension and termination

16.1 Suspension

NERVA may temporarily restrict access for security, abuse, non-payment, legal compliance or serious risk.

16.2 Termination

NERVA may terminate an Account or Service where permitted by law and the applicable commercial arrangement. Where practical, notice and a reasonable export opportunity will be provided.

16.3 User termination

You may close your Account through the supported process, subject to charges and lawful retention.

16.4 After termination

Data may be deleted, anonymized, retained or archived according to the Privacy Policy, legal obligations, disputes and backup cycles.

17. Consumer rights

17.1 Mandatory rights

Nothing excludes a statutory right or remedy that cannot legally be excluded.

17.2 Fair representations

NERVA intends that product descriptions and pricing be accurate and not misleading. Kenyan consumer law restricts unfair and unconscionable representations.

17.3 Conflict with law

Mandatory law controls over a conflicting clause only to the extent of the conflict.

18. Privacy and data protection

18.1 Privacy Policy

The SimpleSales Privacy Policy explains processing, sharing, retention, security, rights and deletion.

18.2 Merchant data

Where you enter personal data about customers, suppliers or employees, you are responsible for lawful authority and required notices. NERVA may be a processor/service provider for those records and a controller for its own purposes.

18.3 Rights

Data subjects may have rights including information, access, correction, objection, deletion where applicable, restriction and portability where provided by law.

19. Electronic communications

19.1 Electronic records

Notices, receipts, invoices and service messages may be delivered electronically where lawful.

19.2 Contact information

Keep account contact information current.

19.3 Legal notices

Legal notices should use the official contact published by NERVA; replace the placeholder before publication.

20. Governing law and disputes

20.1 Kenya law

These Terms are governed by Kenyan law, subject to mandatory protections applicable to consumers or other protected parties.

20.2 Good-faith resolution

Parties should reasonably attempt to identify and resolve disputes before formal proceedings unless urgent relief or a legal deadline makes that impracticable.

20.3 Courts

Subject to mandatory rights, competent Kenyan courts have jurisdiction. Nothing prevents statutory regulatory complaints or urgent relief.

21. General provisions

21.1 Entire agreement

These Terms, the Privacy Policy and applicable commercial terms form the agreement for the relevant Service.

21.2 Assignment

You may not assign without consent except where law permits. NERVA may transfer the agreement as part of a restructuring, merger, acquisition or sale, subject to law.

21.3 Severability

Invalid provisions are limited or removed only as necessary; the remainder continues.

21.4 Waiver

Failure to enforce immediately is not a waiver.

21.5 No partnership

Use of SimpleSales does not create partnership, employment, agency or joint venture.

21.6 Force majeure

Neither party is responsible for delays outside reasonable control, subject to mandatory law.

22. Release checklist and research basis

22.1 Before publication

1 Confirm exact contracting legal entity and registered address.

2 Insert monitored legal/privacy/security contacts.

3 Publish the Privacy Policy at a stable public HTTPS web URL and link it in-app and in the store listing.

4 Inventory production SDKs, processors, payment services, analytics, authentication and backup services.

5 Implement account deletion and document deletion/retention exceptions.

6 Complete Google Play Data Safety disclosures consistently with actual behavior.

7 Confirm ODPC registration obligations.

8 Have Kenyan counsel review the final document, especially liability, consumer, data-protection and dispute provisions.

9 Have a tax professional review tax-related features and wording.

22.2 Research note

This drafting reflects Kenyan Data Protection Act principles, ODPC guidance, consumer-protection principles, cybersecurity law, and current Google Play privacy/account-deletion requirements. Public POS repositories were also reviewed for product-risk themes such as local storage, transaction history, roles, payment integrations, exports, backups and security limitations. These sources inform drafting but do not replace legal advice.